

Court No. - 3

Case :- WRIT - C No. - 5341 of 2022

Petitioner :- Mool Chandra Verma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rahul Singh

Counsel for Respondent :- C.S.C.,Gaurav Singh,Krishna Agarawal

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Sri Rahul Singh Rajpoot, learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri Gaurav Singh, learned counsel for the respondent no.4.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ order or direction in the nature of certiorari to quash the notice/order dated 19.08.2021 passed by the Executive Engineer, Distribution Division, Rath Hamirpur, Dakshinanchal Vidyut Vitran, Nigam Limited i.e. respondent no.4 to their consequential effect, contained as Annexure no.8 to this writ petition respectively."

Learned counsel for the respondent No 4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No.4 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 4.7.2022

T.S.